

24VECV04846 24VECV04846

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-06-23

Motion: PLAINTIFF'S MOTION FOR ATTORNEYS' FEES; DEFENDANT GENERAL MOTORS LLC'S MOTION TO TAX COSTS

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Case Number: 24VECV04846 Hearing Date: June 23, 2026 Dept: W

HAMLET TADEVOSYAN, an individual,

Plaintiff,

vs.

GENERAL MOTORS LLC, a Delaware limited

liability company; SWICKARD TOG, LLC, a California limited liability company;

and DOES 1-30, inclusive,

Defendants.

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CASE NO: 24VECV04846

[TENTATIVE] ORDER RE: PLAINTIFF'S MOTION

FOR ATTORNEYS' FEES; DEFENDANT GENERAL MOTORS LLC'S MOTION TO TAX COSTS

Dept. U

8:30 a.m.

June 23, 2026

I.

BACKGROUND

This case is a lemon

law action filed by Plaintiff Hamlet Tadevosyan against Defendants General

Motors LLC ("General Motors") and Swickard TOG, LLC ("Swickard").

On October 3, 2024,

Plaintiff filed his complaint against Defendants.

On November 6, 2024, General

Motors filed its original answer to the complaint.

On December 6, 2024, General

Motors filed a second answer to the complaint.

On December 16, 2024, Swickard filed its
answer to the complaint.

On February 26, 2026, Plaintiff filed his
notice of settlement of the entire case.

On March 11, 2026, Plaintiff filed his motion
for attorneys' fees.

Also on March 11, 2026, Plaintiff filed his
costs memorandum, seeking \$4,432.16 in litigation costs.

On March 25, 2026, General Motors filed its
motion to strike or tax costs.

On May 28, 2026, General Motors filed its
opposition brief as to the motion for attorneys' fees.

On June 9, 2026, Plaintiff filed his
opposition brief as to the motion to strike or tax costs.

On June 15, 2026, Plaintiff filed his reply
brief as to the motion for attorneys' fees.

On June 16, 2026, General Motors filed its
reply brief as to the motion to strike or tax costs.

II.

LEGAL

STANDARD

If a buyer-plaintiff

prevails in an action under Civil Code section 1794, "the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." Civ. Code, § 1794 (d).

III.

DISCUSSION

Plaintiff seeks an award of attorneys'

fees in the total amount of \$97,113.00, representing over 93.6 hours of attorney time at rates between \$550.00/hour and \$750.00/hour, plus 7.7 hours of legal assistant time at \$150.00/hour, plus a 1.5 multiplier. In opposition to the motion, General Motors argues Plaintiff should be awarded no more than \$15,157.50. Ultimately, Plaintiff will be awarded his attorneys' fees in the reduced total amount of \$30,405.00.

Plaintiff also

seeks the following \$4,432.16 in litigation costs: \$700.25 for filing and motion fees, \$150.00 for jury fees, \$103.26 for service of process, \$2,683.40

for witness fees, \$20.25 for fees for electronic filing or service, and \$775.00

for “other” fees, specified as a mediation and an “AppearMe” service fee. General Motors moves to tax a total of \$3,803.32 from Plaintiff’s costs

memorandum. The motion to tax costs will be granted only as to \$525.00 in mediation

fees. Ultimately, Plaintiff will be

awarded his costs in the total amount of \$3,907.16.

a. 65.00

hours of attorney time and 7.7 hours of legal assistant time is reasonable for

Plaintiff’s counsel to have spent working on this case.

The

trial court has an obligation to award only those attorneys’ fees that are

reasonable. See *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1096 (*PLCM*

Group); see also *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132 (*Ketchum*).

Plaintiff seeks an award of attorneys’ fees in the total

amount of \$97,113.00, representing over 93.6 hours of attorney time at rates

between \$550.00/hour and \$750.00/hour, plus 7.7 hours of legal assistant time

at \$150.00/hour, plus a 1.5 multiplier. In opposition to the motion, General Motors argues

Plaintiff should be awarded no more than \$15,157.50.

Both sides’

positions as to the amount of attorneys’ fees that should be awarded in this

case are unreasonable. This case

involved no motion practice. However, counsel

conducted substantial discovery. General

Motors' position that Plaintiff should only be awarded \$15,157.50 is not reasonable.

Plaintiff's request

for more than 101.3 attorney/legal assistant hours is also unreasonable. The total number of hours claimed in the

billing records attached to the declaration of Attorney Hovanes Margarian is

excessive. Specifically:

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Counsel claims 12.5 hours for pre-filing work

in a routine lemon law case. Such basic

lemon law research and consultation tasks should have taken counsel no more

than 8.0 hours to complete. The Court

will strike 4.5 hours from Plaintiff's request for attorneys' fees. (12.5 - 8.0 = 4.5.)

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Counsel claims 55.3 hours for post-filing

work, including discovery and settlement.

This is excessive. The Court is especially

concerned with counsel's representation that their firm spent 11.8 hours to review

General Motors's objections to a deposition notice. (See Opposition, p. 9:18-28.) Counsel should have been able to complete all

tasks falling within this category of discovery and settlement activities in no

more than 45.0 hours. The Court will

strike 10.3 hours from Plaintiff's request for attorneys' fees. ($55.3 - 45.0 = 10.3$.)

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Counsel claims 6.7 hours for communications

with their client. Client communications

in a basic lemon law case should have taken counsel no more than 4.0 hours to

complete. The Court will strike 2.7

hours from Plaintiff's request for attorneys' fees. ($6.7 - 4.0 = 2.7$.)

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Counsel claims 17.1 hours for work on the

motion for attorneys' fees. These motions

are basically template motions and it should not have taken counsel more than 6.0 hours to complete. This calculation is inclusive of time

required to oppose General Motors's motion to strike or tax costs and time to

attend the single hearing on both motions.

The Court will strike 11.1 hours from Plaintiff's request for attorneys'

fees. ($17.1 - 6.0 = 11.1$.)

In sum, many of Plaintiff's specific time

allocations are for routine lemon law discovery practice that should not take

an inordinate amount of time to complete.

Plaintiff's counsel seeks compensation at high rates for work that has become routine and boilerplate in the lemon law arena. This work should proceed at a fraction of the hours that are being claimed.

As to the 7.7 hours billed for legal assistant time, the Court disagrees with General Motors that any of these time-allocations were unreasonably claimed.

Plaintiff will be allowed to recover for 7.7 hours of legal assistant time.

Ultimately, 65.0 hours of attorney time and 7.7 hours of legal assistant time is reasonable for Plaintiff's counsel work on this case. This represents a reduction of 28.6 attorney hours from the 93.6 attorney hours originally claimed. $(4.5 + 10.3 + 2.7 + 11.1 = 28.6)$ This award is inclusive of counsel's work on the instant motion for attorneys' fees and time to attend the hearing thereon.

b. Plaintiff

will be awarded \$30,405.00 in attorneys' fees for work completed on this case. $(65.0 \text{ attorney hours at } \$450.00/\text{hour} + 7.7 \text{ legal assistant hours at } \$150.00/\text{hour})$

The

trial court awards reasonable attorneys' fees according to the lodestar. See *PLCM*

Group v. Drexler (2000) 22 Cal.4th 1084, 1096; see also *Ketchum v. Moses*

(2001) 24 Cal.4th 1122, 1132.

Plaintiff's

counsel's declaration states that attorneys who worked on this case bill at rates

between \$550.00/hour and \$750.00/hour. (See Hovanes decl., Exh. A.)

The Court has reviewed and

considered the parties' arguments regarding setting reasonable rates in this

case. \$450.00 is a reasonable hourly

rate for attorneys in this matter given Plaintiff's counsel's experience.

The Court disagrees with Plaintiff that the fact

that this case was taken on contingency warrants an additional greater rate or

a fee multiplier. The contingency risk is built into a \$450.00/hour rate. \$150.00/hour is a reasonable rate for legal assistants.

The Court will award Plaintiff his reasonable attorneys'

fees for counsel's work on this case up through and including the instant

motion for attorneys' fees and the hearing thereon in the total amount of \$30,405.00.

(65.0 attorney hours at \$450.00/hour + 7.7 legal assistant hours at

\$150.00/hour = \$30,405.00.)

C.

The motion to tax costs will be

granted only as to \$525.00 in mediation fees.

Plaintiff also seeks the following \$4,432.16 in litigation

costs: \$700.25 for filing and motion fees, \$150.00 for jury fees, \$103.26 for

service of process, \$2,683.40 for witness fees, \$20.25 for fees for electronic

filing or service, and \$775.00 for "other" fees, specified as a mediation fee and

an "AppearMe" service fee. General Motors moves to tax a total of

\$3,803.32 from Plaintiff's costs memorandum.

To be recoverable,

allowable costs must be "reasonably necessary to the conduct of the litigation

rather than merely convenient or beneficial to its preparation." Code

Civ. Proc., § 1033.5(c)(2).

As to filing and motion fees, General Motors argues

Plaintiff's claim is improper as to \$23.67 in fees paid to file a form

dismissal as to several of Plaintiff's causes of action. The Court disagrees with General Motors that

such a filing was not reasonably necessary to the conduct of litigation. Plaintiff will be allowed to collect fees

paid to file a form dismissal.

General

Motors argues Plaintiff's claimed filing and motion fees are also improper

because Plaintiff claims \$47.34 in fees for anticipated filings of opposition

and reply briefs in response to the motion for attorneys' fees and the motion

to tax costs. General Motors argues

Plaintiff should only be allowed to recover costs actually incurred. However, since General Motors filed its

motion to tax costs, Plaintiff has, in fact, filed opposition and reply briefs

in response to the subject motions.

Thus, the fees were actually incurred.

Plaintiff will be allowed to recover his fees for filings of opposition

and reply briefs.

General Motors argues Plaintiff should not be allowed to

recover his \$150.00 in jury fees because the case did not go to trial, citing

the case *Perko's Enterprises, Inc. v. RRNS Enterprises* (1992) 4

Cal.App.4th 238, 245. While that case

states that recoverable costs must have been reasonably incurred and discusses

the applicable standard of review when an appellate court is reviewing a trial

court's order denying a motion to tax costs, the case does not indicate, as General

Motors suggests, that jury fees are not recoverable when there has been no jury

trial. Here, Plaintiff was reasonably

required to pay jury fees upfront to preserve his option for a jury trial if

the case did not settle. In this Court's

opinion, such costs were reasonably necessary to the conduct of litigation and

are thus recoverable.

As to service of process, General Motors complains that Plaintiff's

claim for \$103.26 in costs is improper because Plaintiff provides no

documentation of who "Rebecca Vang" is. General

Motors is incorrect. Plaintiff's proof

of service indicates Ms. Vang was served as Swickard's agent for service of

process. (See Hovanes decl., Exh.

A.) Plaintiff is allowed to recover

costs incurred for the purpose of serving Ms. Vang.

As to expert fees, General Motors argues Plaintiff should

not be allowed to recover \$2,683.40 in expert fees paid to "David Gurul"

because Mr. Gurul was never designated as an expert and the parties never

exchanged expert discovery. However,

that Mr. Gurul was never designated as an expert appears to be at least in part

because this case settled before trial.

Mr. Gurul's inspection of the vehicle appears to have been helpful in

the settlement process. Had this case

proceeded to trial, Mr. Gurul's inspection of the car would likely have been

evidence presented to a jury. The Court

agrees with Plaintiff that the expert inspection was reasonably necessary at

the time it was conducted, and that Plaintiff should be allowed to recover Mr.

Gurul's fees under Civil Code section 1794 (d).

As to \$20.25 in electronic filing fees, General

Motors complains that Plaintiff fails to provide documentary evidence of these

costs with his costs memorandum. However,

Plaintiff's opposition brief explains, "These charges were

incurred solely to transmit filings to the Court through the Court's authorized

e-filing vendor, a process Plaintiff was required to use, and are not optional

or discretionary administrative add-ons."

(Opposition, p. 9:2-4.) The Court

agrees with Plaintiff that this explanation of \$20.25 in electronic

filing fees is sufficient without needing to provide specific documentary

evidence of electronic service fees paid out.

Finally, General Motors challenges Plaintiff's claim

of \$775.00 for "other" fees, which consists of \$700.00 for mediation and \$75.00

for an appearance fee. The Court agrees with

Plaintiff that the \$75.00 appearance fee was reasonably incurred. Although the appearance fee appears to have

only been necessary because Plaintiff's counsel was unavailable due to the firm

needing to attend to another case on that date, a single \$75.00 appearance fee

during the lifetime of a case may be reasonably understood as necessary to the

conduct of litigation.

As to

the \$700.00 mediation fee, however, the Court agrees with General Motors that

Plaintiff's claim is improper because the mediator's invoice indicates the

mediation session covered four (4) separate cases. In other words, this case made up just $\frac{1}{4}$ of

the substance of the mediation.

Plaintiff should not be allowed to recover the full amount of that mediation

session in connection with this single case.

The Court will thus strike \$525.00 (i.e., $\frac{3}{4}$ of the mediator's fee) from

Plaintiff's costs memorandum. Plaintiff

will be allowed to recover \$175.00 (i.e., $\frac{1}{4}$ of the mediator's fee).

In

sum, the motion to tax costs will be granted only as to \$525.00 related to

mediation. Plaintiff will be allowed to

recover his costs in the total amount of \$3,907.16. (\$4,432.16 -

\$525.00 = \$3,907.16.)

IV.

CONCLUSION

Plaintiff Hamlet Tadevosyan's motion for attorneys' fees is GRANTED

in the total reduced amount of \$30,405.00. Plaintiff

Hamlet Tadevosyan is AWARDED

his attorneys' fees in the total amount of \$30,405.00.

Defendant

General Motors LLC's motion to tax costs is GRANTED only as to \$525.00

in mediation fees. Plaintiff Hamlet Tadevosyan is AWARDED

his costs in the total amount of \$3,907.16. (\$4,432.16 -

\$525.00 = \$3,907.16.)

Plaintiff Hamlet Tadevosyan is ORDERED to give

notice.

DATED: June 23, 2026

Yolanda

Orozco

Judge

of the Superior Court